

		132.) This is sufficient to state a claim for violation of Penal Code § 502. As to Vortek, there are no factual allegations as to how it accessed Plaintiff's computers or otherwise took actions to knowingly assist Torres and Stetzko in accessing the computer system. Moreover, Vortek was not in existence at the time Torres and Stetzko were employed by Plaintiff. Accordingly, the demurrer to the eleventh cause of action is OVERRULED as to Torres and Stetzko and SUSTAINED as to Vortek with leave to amend. Fourteenth Cause of Action – Violation of Penal Code § 496 Penal Code § 496 makes it a crime to buy, receive, conceal, sell, or withhold property that is known to be stolen or obtained in any manner constituting theft or extortion. The FAC alleges Defendants knowingly received and possessed AirGap's property knowing that such property had been obtained unlawfully and without Plaintiff's consent. Defendants argue the FAC fails to allege Defendants had "actual knowledge of the stolen character of the property." But this argument is just a matter of semantics. Plaintiff alleges the property was "unlawfully obtained" which is synonymous with theft. Accordingly, the demurrer to the fourteenth cause of action is OVERRULED. The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Plaintiff has 20 days leave to amend the complaint. Defendants shall give notice of this ruling.
58.	Rajabi v. Smith 2023-01344444	The court will not issue a tentative on the motion to enforce the settlement or on the motion for leave to intervene. The parties and/or their counsel are ordered to appear on June 8, 2026 to discuss the status of this case.
59.	Vizcarra v. Bevmó! Inc. 2023-01348855	Defendant / cross-defendant Dock Pros, Inc.'s unopposed motion for summary adjudication as to plaintiff Isidro Vizcarra's complaint, as well as indemnity cross-complaints by defendants / cross-complainants Bevmó! Inc. ["Bevmó"], and Shear Construction, is GRANTED IN PART and MOOT IN PART. (Code Civ. Proc., § 437c [authorizing motion].)

		The motion is MOOT as to Shear Construction's cross-complaint, which was dismissed on 5-12-26. (ROA 342.) The remainder of the motion is GRANTED. On summary judgment / adjudication, the moving party's papers are strictly construed, while the opposing party's papers are liberally construed. (<i>Comm. to Save Beverly Highland Homes Assoc. v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment / adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) Moving Party was named as Doe 3, and thus is named in plaintiff's 1st C/A for negligence and 2nd C/A for premises liability, but not the 3rd C/A for products liability. (MP Ex. K [Complaint], Ex. L [Doe amendment].) The elements of negligence [1st C/A] are: (1) defendant's legal duty to conform to a standard of conduct to protect the plaintiff; (2) defendant failed to meet this standard of conduct; (3) causation; (4) damages. (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917.) The elements of a premises liability claim [2nd C/A] are the same for negligence generally: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (<i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1158; citations omitted.) Premises liability "is grounded in the possession of the premises and the attendant right to control and manage the premises ..." (<i>Id.</i>; citations omitted; see also CACI 1000 [elements of a claim for premises liability are: (1) defendant owned, leased, occupied, and/or controlled the property; (2) defendant was negligent in the use or maintenance of the property; (3) causation; (4) damages].) Moving party has proven that neither plaintiff nor Bevmo can establish the essential elements of duty and/or breach, because it installed the subject dock lift with safety chains (Moving Party Separate Statement, Fact Nos. 1, 2); that it has not performed any work, services, or maintenance thereafter (<i>Id.</i>, Fact No. 8); and never received any complaints or other notice regarding the subject dock lift or safety chains thereafter (<i>Id.</i>, Fact Nos. 9-11). (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [negligence elements]; <i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1158 [premises liability elements]; <i>Bailey v. Safeway, Inc.</i> (2011) 199 Cal.App.4th 206, 212 [indemnity elements].)
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